



A COMMUNITY OF CHOICE

CITY ENGINEER'S OFFICE
2101 O'Neil Avenue
Cheyenne, Wyoming 82001

MEMO

TO: Honorable Mayor Patrick J. Collins, City of Cheyenne
Members of the City Council, City of Cheyenne

FROM: Erin Gates

DATE: May 8, 2024

SUBJECT: Consideration of RFP #9-24 for a Professional Service Agreement between the City of Cheyenne and TPT Trails, LLC design and construction services for the Belvoir Ranch Phase 2, Design-Build Trail project.

Proposals were solicited for the Belvoir Ranch Phase 2, Design-Build project. This project is for the design services and construction of approximately 6.5 miles of a single-track trail system for multi-use, nonmotorized use. One written technical proposal, with a sealed price proposal, was received from TPT Trails, LLC.

A review committee comprised of City Staff from Public Works, Community Recreation and Events, Planning and Development, 1% Construction, and Engineering evaluated the submitted proposal for a qualification-based selection. The price proposal was opened following the ranking of the submitted proposal. The price proposal appears appropriate for the scope of services described in the Request for Proposals and the submitted written technical proposal.

The fees include services design, construction, and GIS data for this project. Funding for this project will come from the Belvoir Recreation Fund, GL 015-21-2111-45-21301. The total professional and construction services will be a cost not-to-exceed \$219,672.93. We respectfully request your approval of this professional services agreement.

City Contract No. _____

PROFESSIONAL SERVICES AGREEMENT

for

Belvoir Ranch Phase 2, Design-Build Trail

This Professional Services Agreement (“Agreement”) is made and entered into by and between the City of Cheyenne, located at 2101 O’Neil Avenue, Cheyenne, Wyoming 82001 (“City”), and TPT Trails, LLC, located at 701 W. 30th Street, Cheyenne, Wyoming 82001 (“Consultant”). This Agreement shall become effective upon the date of the last signature affixed hereto.

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. SCOPE OF WORK

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. TIME OF PERFORMANCE

The work included in this Scope of Work will be completed by November 30, 2024, as stated in Exhibit A.

3. COMPENSATION

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of two-hundred nineteen thousand, six-hundred seventy-two dollars, and ninety-three cents (\$219,672.93) as stated in Exhibit B.

4. CONSULTANT RESPONSIBILITY

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. COMPLIANCE WITH LAWS

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. DRUG-FREE WORKPLACE

In compliance with the Drug-Free Workplace Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers, and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. INDEMNIFICATION/HOLD HARMLESS

The Consultant agrees to indemnify, hold harmless, and defend the City from and against any and all liabilities, claims, penalties, forfeitures, and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations, or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error, or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. INSURANCE REQUIREMENTS

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness, or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be

provided pursuant to an “occurrence” policy. If this coverage is provided pursuant to a “claims made” policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant’s services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said “claims made” coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates “claims made” coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period (“tail coverage”) which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as **an Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers’ compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City’s failure to request or review such policies, endorsements, or certificates shall not affect the City’s rights or Consultant’s obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin, or sex.
10. MONTHLY REPORT
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. INDEPENDENT CONSULTANT
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. TAXES
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts, and obligations incurred by and in connection with its operations under this Agreement.
13. DEFAULT
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. REMEDIES
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. TERM AND TERMINATION
The term of this Agreement shall be from date of execution to November 30, 2024. The parties may by mutual written agreement renew or extend this Agreement. The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this

Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. ADDITIONAL REMEDIES

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. GOVERNING LAW, JURISDICTION AND VENUE

The construction, interpretation, and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. GOVERNMENTAL IMMUNITY

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. MONITORING ACTIVITIES

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. OWNERSHIP OF DOCUMENTS AND WORK PRODUCT

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. NON-DISCRIMINATION

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. FORCE MAJEURE.

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. PROFESSIONAL REGISTRATION

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. ENTIRETY OF AGREEMENT

This Agreement consisting of seven (7) pages, Exhibit A consisting of four (4) pages, and Exhibit B consisting of two (2) pages contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the Parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood, and knowingly and voluntarily agreed to the terms and conditions of this Agreement. This Agreement may be executed in multiple counterparts, each of which shall be deemed an original, but all of which together shall constitute one and the same instrument.

City of Cheyenne

(SEAL)

By: _____
Patrick Collins, Mayor

Attest:

Kristina F. Jones, City Clerk

Date: _____

TPT Trails, LLC

By: _____

Print Name: _____

Date: _____

Scope of Work

Design

The Consultant/Contractor shall design a trail system consisting of approximately 6.5 miles of new natural tread multi-use nonmotorized trails designed for Hikers and Mountain Bikers. The trail width will be 24 to 30 inches with a low maintenance sustainable tread design. The trail system shall be configured, developed, and constructed as a stacked loop system. Trail design and construction shall adhere to the IMBA *Trail Solutions* standards. Trails will be designed and built to accommodate users with an intermediate fitness level and beginner to intermediate mountain bike skills. This project does include a short segment of trail that will require advanced mountain bike skills. The project will also include signposts and navigational sign placement at all trail intersections. Directional/location signs will be supplied by the City of Cheyenne.

Trail design must incorporate adequate grade reversals for trails to properly drain and shed water. Wherever possible, trails should be located and constructed on rock exposures and soils that support sustainability and reduce maintenance. Sustainability components should include:

- Support of current and future use with minimal impact to the area's natural systems.
- Produce negligible soil erosion, loss, or movement while allowing vegetation to inhabit the area.
- Does not adversely affect the area's animal life.
- Accommodate existing use while allowing only appropriate future use.
- Careful trail design that eliminates or minimizes future trail rerouting.
- Minimizes long-term maintenance.

Construction

Trail construction will be a combination of hand and machine-built tread. It should be anticipated that much of the trail alignment is not conducive to machine use due to rock outcroppings and other natural features that should remain undisturbed and minimally impacted for aesthetic value and preservation of the natural resource.

Construction considerations include:

- The tread of any trail section steeper than 8% and longer than 25 feet is to be armored with stone. The same requirement holds for any section longer than 10 feet where the grade exceeds 10%, and for the entire length of any section steeper than 12%.
- Full bench cut construction technique wherever possible, otherwise partial bench cut with large rock edge stabilization. Drainage features should be incorporated into the edge stabilization.
- Minimum finished tread width of 24 inches where side slopes are 40% or less. Where side slopes exceed 40%, or where downhill exposure exceeds 3 feet, the finished tread width of 30 inches, minimum.
- Average tread out-slope of 3% to 5%.
- Trail tread surface will be a smooth finish except for unavoidable obstacles or trail stabilization features measuring 8 inches or less in height. Any rock ramp or step features incorporated into the trail tread should be shaped or built in a manner that does not create a trail feature that exceeds an intermediate difficulty rating.
- Shaped back slope no steeper than 1:1 ratio except where impractical due to terrain features.

- Fills deeper than 3 inches should incorporate a mix of dirt, crushed rock, and mineral soils.
- Grade reversals incorporated as frequently as possible; ideally a minimum spacing of 100 feet apart.
- Climbing turns will have a minimum radius of 10 feet for intermediate trails and include a grade reversal before and after.
- Directional/location trail maps will be placed at each intersection.
- Trail maps will be oriented such that the top of the map is North and users viewing the map will be facing a Northern direction.

LAYOUT: A preliminary trail corridor should be mapped and laid out with colored flagging at least every 50 feet with the desired route and with the IMBA Trail Difficulty Level matrix in mind. The actual trail should be placed within 20 feet of the corridor flag line, at no point will the average trail grade exceed 10% for more than 15 feet. At no point will the grade exceed 15%. The contractor shall field layout and pin flag the trail using curvilinear design principles to fit the specifications while staying within the trail corridor. The City of Cheyenne project manager shall approve any major changes outside the area of the defined trail corridor prior to construction. Approval of the trail's final field layout and flagging will be contingent on the Contractor meeting the specifications of the trail as laid out in this scope of work. City of Cheyenne staff will walk the trail centerline with the Contractor for final approval of field design prior to construction.

PRESERVATION OF VEGETATION: The Consultant/Contractor shall exercise care to preserve the natural landscape, including trees and shrubs, and shall conduct construction operations to prevent any unnecessary destruction, scarring, or defacing of the natural surroundings in the vicinity of the work. Except where clearing is required for permanent work or excavation operations, all trees, native shrubbery, and vegetation, shall be preserved and protected from damage by the Consultant/Contractor's construction operations and equipment. All unnecessary destruction, scarring, damage, or defacing of the landscape resulting from the Consultant/Contractor's operations, shall be repaired, replanted, reseeded, or otherwise corrected as directed by the City's Project Manager and at no additional expense to the owner.

No living trees greater than 4" in diameter at 4 feet high will be cut or removed from the trail corridor. Tree stumps in the trail tread will be dug up and the hole filled with dirt. Trees and brush cut from the corridor shall be removed to a distance of at least 20 feet from the centerline on the downhill side of the trail. Cut trees and brush shall be cut up so they lay near the ground, not exceeding three feet in height.

TRAIL CORRIDOR: Consultant/Contractor shall clear and grub the trail corridor and shape the trail tread to include the construction of backslopes, embankment and backfill, climbing turns, drainage structures, etc. leaving an even, compacted, uniform surface free of indentations. Native materials such as rocks, trees, soils, etc. within 100 feet of either side of the trail corridor centerline can be used to construct trail features and structures when it has been determined that their use will not adversely impact the natural resources of the area based on a field review between City's Project Manager and the Consultant/Contractor during the field design and layout. Native materials outside of 100 feet of the trail corridor centerline may be used with approval of the City's Project Manager.

TRAIL TREAD: Native mineral soil with a cross slope of 3 to 5% for sheet drainage. All organic materials shall be removed leaving an even, compacted, uniform surface free of indentations.

EXHIBIT A

Organic materials shall be scattered from the trail on the downhill side. Organic materials are not to be used for cut and fill.

TRAIL GRADE/WIDTH: Trail width will be 24 to 30 inches. The average trail grade should be 8% or less, and at no point will the average trail grade exceed 10% for more than 15 feet. At no point will the grade exceed 15%. Trail grades shall not exceed 50% of the side-slope. For example, on a sidehill where the side-slope is 20%, the trail grade may not exceed 10%. The trail width should be a minimum of 24 inches and maximum of 30 inches.

TRAIL CROSS SECTIONS: Trail will be fully bench-cut into side-slope wherever possible. When bench-cut is not possible and material is needed to build up the downhill edge, it will be reinforced with a retaining wall made from natural on-site rock. Trail will be out-sloped 3 to 7% except corners where in-slope is needed for safety and usability. Back-slopes will be cut/shaped to maintain stable conditions but in general around a 1.5:1 slope ratio.

TRAIL DIMENSIONS:

- Tread Width 24 to 30 inches
- Corridor Width 48 to 60 inches
- Corridor Height 84 to 120 inches
- Out slope 3% to 5%

DRAINAGE: Drainage structures will be incorporated into the trail tread and trail layout to minimize the effects of water flow and prevent excessive erosion. Trail shall follow the contour of the terrain but remain at least 35 feet from stream banks or obvious surface water flow lines except at crossings. Alignment shall take advantage of natural drainage to minimize the need for major drainage modifications. In areas where there is a potential for trail erosion, grade reversals shall be incorporated into the trail tread to create natural appearing drainage dips. Grade reversals can include both grade dips and rolling grade dips. More grade reversals will be needed on steeper sections (over 7%) and less needed on flatter sections (under 4%). Water bars will not be used in the construction of the trail.

ACCESS AND HAUL ROUTES: Visual damage to vegetation, either woody or herbaceous, must be avoided outside of the corridor. Use of and types of mechanical equipment will need to be approved by City's Project Manager prior to construction. The Consultant/Contractor shall inspect the access for suitability and obtain permission from the City of Cheyenne for equipment transport to remote areas. The Consultant/Contractor shall make his own investigation of the condition of available public or private roads to determine clearances, restrictions, and other limitations that affect transportation at the job site. Existing roads are available for the Consultant/Contractor's use provided they are inside the boundary of the Belvoir Ranch property. The Contractor will repair any damage on existing roads caused by the Contractor.

POWER AND WATER: The Consultant/Contractor shall make all necessary arrangements and shall provide all power and water required for construction purposes. The cost of conveying water to points of use shall be included in the bid price.

SIGNAGE INSTALLATION: The Consultant/Contractor shall install signposts and navigational signage. Directional and location signs will be supplied by the City of Cheyenne.

NON-MOTORIZED CATTLE GUARD: The Consultant/Contractor shall furnish and install a non-motorized trail cattle guard, approximately 35” wide, with a handrail on one side (minimum), and pedestrian tread centered on the crossing, similar to those manufactured by Easy Fence, LLC, or approved equal.

STAGING AREA: The proposed main trailhead will be the staging area for the project. Prior to construction the City’s Project Manager will identify and mark the location for on-site storage of equipment, materials, or other items needed for construction. All tools and machinery should be cached within a reasonable distance from the work area.

CLEAN-UP: General clean-up will be carried out by the Consultant/Contractor over the limits of the entire project to the satisfaction of the Project Manager. This includes touch-up work, patching, and clean-up of all materials related to this contract and Consultant/Contractor. Clean-up will not be paid for separately but will be included in lump sum bid price. All waste materials will be packed out and sanitation practices shall adhere to “Leave No Trace” concepts. The Consultant/Contractor shall provide and use a portable toilet for human solid wastes.

COORDINATION: The Consultant/Contractor should be aware of other construction activities that may be occurring in the same project area and shall coordinate with the city and others completing work at the site to minimize conflicts and meet project objective and deadlines.

SCHEDULE: Construction shall be completed by November 30, 2024.

DELIVERABLES

Develop a plan for a stacked loop trail system that adheres to IMBA *Trail Solutions* standards. Trails should be designed and built for trail users with an intermediate fitness level and beginner to intermediate mountain bike skills. Identify main corridor routes with flagging approximately 50 feet apart. Verify evaluation of rock and soil conditions to determine appropriate features and grades for maximum trail sustainability.

Prepare a draft plan that includes:

- Detailed maps identifying main corridor routes
- Scenic overlooks
- Rock outcroppings
- Climbing turns
- Switchbacks / berm corners
- Rock and wood features
- Culverts or sustainable drainage crossings
- Retaining walls

The plan shall include details that will be used during construction. A description of means and methods of trail and feature construction shall be provided. Prepare a cost estimate for construction based on the map and identified features.

Build approximately 6.5 miles of non-motorized, natural tread trail to IMBA *Trail Solutions* standards. Provide final GIS data of the constructed trails.

ADDENDUM ONE REVISED Price Proposal – Compensation Schedule

(INCLUDE THIS PAGE AS A PART OF THE BELVOIR RANCH PHASE 2, DESIGN-BUILD TRAIL – PRICE PROPOSAL SUBMISSION.

The price proposal shall be a price not to exceed for all design, construction, and coordination of the project. This envelope will not be opened until the selection of a firm based on review of technical proposals or after completion of the interviews with qualified submitting Consultants/Contractors has been completed. Include the following:

Project Design	\$ <u>8,800.00</u>
Construction	\$ <u>210,872.93</u>
Total Contract	\$ <u>219,672.93</u>

A breakout of anticipated items to be constructed is to be included with the total project cost. These items are not in addition to the total cost for the project but will be used for adjustments to quantities for the project to remain within the budget or based on site conditions. Consultants/Contractors are to include additional anticipated items, an estimated quantity, unit price, and any appropriate notes. The unit price shall be the price to complete the necessary work including furnishing and installing all necessary items and elements, use of tools and equipment, profit, and overhead.

Item	Unit	Estimated Quantity	Unit Price	Notes
Insurance and Performance & Payment Bonds	LS	1	6141.93	
Hand-Built or Machine-Built Trail Tread	LF	34,149	170.745	Measured along the centerline of the trail
Culverts	EA	3	990	Provide a price for each size and material type anticipated, include flared end sections (FES)
Armored Trail	LF	644	5,796	
Climbing Turns	EA	2	1,000	
Bermed Corners	EA	20	10,000	
Rock Features	<u>LF</u> EA	<u>100</u> 3	10,000	
Wood Features	<u>LF</u> EA	<u>50</u> 2	2,500	Optional, location to be coordination with City Project Manager
Post Placement	EA	17	850	
Sign Placement	EA	17	850	
Non-Motorized Trail Cattle Guard	EA	1	2,000	